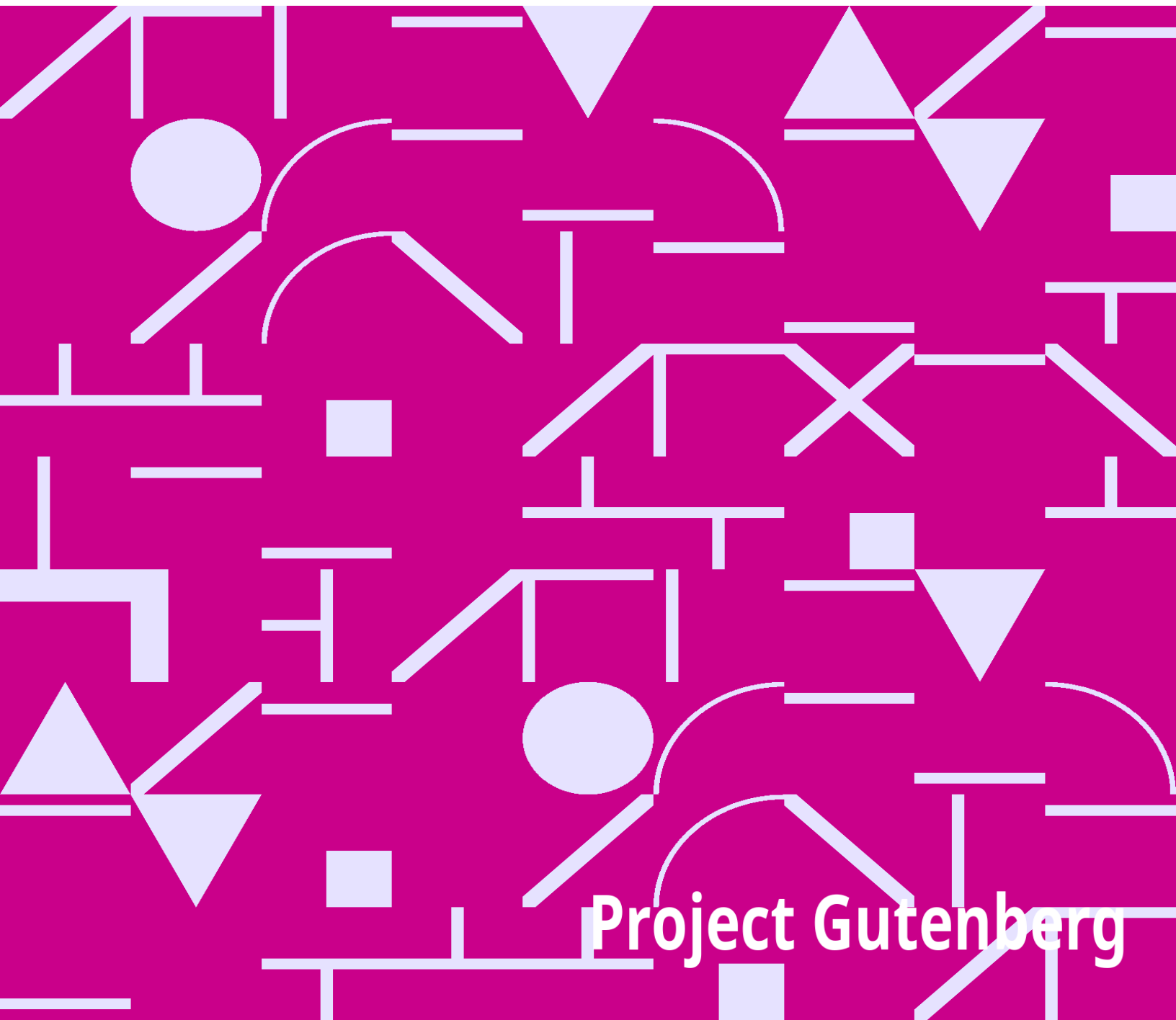


Notes and Queries, Number 211, November 12, 1853

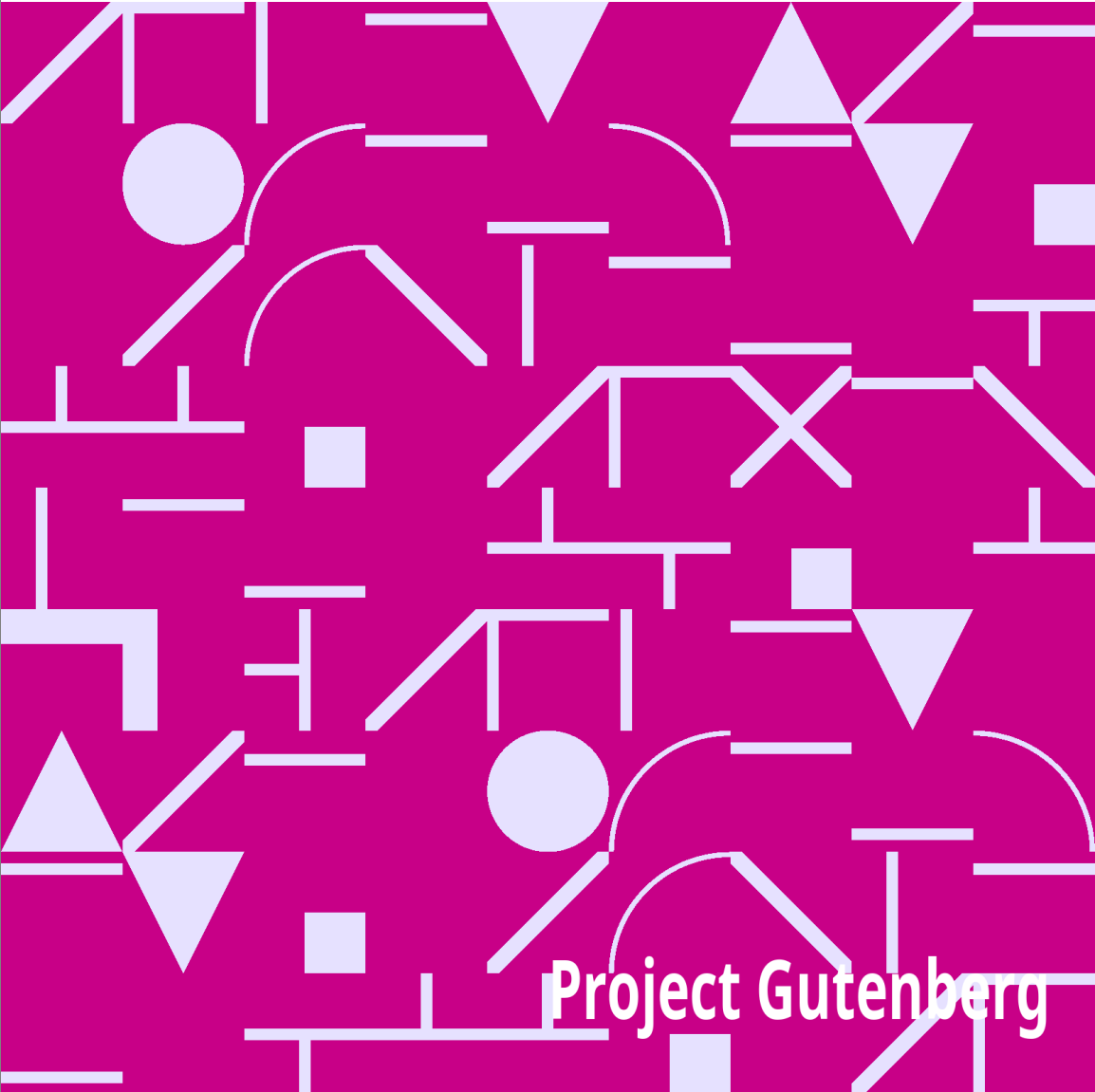
Various and George Bell

A decorative background pattern consisting of various white geometric shapes on a magenta background. The shapes include circles, triangles, squares, rectangles, and lines, some of which are arranged to form larger, more complex structures like arches and crosses.

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Various and George Bell

A decorative geometric pattern in white and light purple on a magenta background, featuring various shapes like triangles, circles, squares, and lines.

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Title: Notes and Queries, Number 211, November 12, 1853

Author: Various

Editor: George Bell

Release date: October 24, 2008 [eBook #27008]

Language: English

Other information and formats: www.gutenberg.org/ebooks/27008

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QUERIES, NUMBER 211, NOVEMBER 12, 1853 ***

NOTES AND QUERIES:

**A MEDIUM OF INTER-COMMUNICATION
FOR LITERARY MEN, ARTISTS,
ANTIQUARIES, GENEALOGISTS, ETC.**

"When found, make a note of."—CAPTAIN CUTTLE.

No. 211.

SATURDAY, NOVEMBER 12. 1853.

**Price Fourpence.
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Notes.

NOTES ON GRAMMONT.

Agreeing with Mr. Peter Cunningham (vide *History of Nell Gwyn*), that a new edition of Grammont is much wanted, I beg to avail myself of your pages, and to offer a few remarks and notes which I have made in reference to that very entertaining work for the consideration of a future annotator.

Of the several maids of honour mentioned therein I will begin with those of the queen. They are Miss Stewart, Miss "Warminster," Miss Bellenden, Miss Bardon, Miss de la Garde, Miss Wells, Miss Livingston, Miss Fielding, and Miss Boynton.

The names of Miss Stewart (Frances Theresa), Miss Boynton (Catherine), Miss Wells (Winefred), and Miss Warmistre are found among the original six, appointed on the queen's marriage, May 21, 1662. The affiliation and marriages of the first two have been well ascertained, but Miss Warmistre's birth is yet open to some conjecture, whilst her marriage, like Miss Wells's parentage, is wholly unknown.

Horace Walpole, on the authority of the last Earl of Arran, of the Butler family, has confounded her with Mary, one of the daughters of George Kirke, Esq., a groom of the bedchamber to Charles I., by Mary his wife, daughter of Aurelian Townsend, Esq., "the admired beauty of the tymes," on whose marriage at Christ Church, Oxford, February 26, 1645-6, "the king gave her." She herself was maid of honour to the Duchess of York in 1674, and the year following left the court, we may believe, under the same circumstances as Miss Warmistre, more than ten years before, had quitted it: after being the mistress of Sir Thomas Vernon, the second Baronet of Hodnet in Shropshire, she became his wife, and ended her life in miserable circumstances at Greenwich in 1711.

"1711, 17 August, Dame Mary, relict of Sir Thomas Vernon, carried away."—Burial register of Greenwich Church.

She was sister to Diana, the last De Vere, Earl of Oxford's, countess, a lady of as free a morality as herself and as her mother, and second wife of Sir Thomas, whose first lady, Elizabeth Cholmondley, died in June, 1676. Sir Thomas died February 5, 1682-3, leaving by her three children, Sir Richard, the last baronet, Henrietta, and Diana, who all died unmarried.

A portrait of Lady Vernon, by Sir Peter Lely, has been engraved in mezzotinto by Browne, and lettered "Mary Kirk, Lady Vernon, maid of honour to Queen Catherine." Another portrait (?) has been engraved by Scheneker for Harding's *Grammont*, 1793. A third portrait was purchased at the Strawberry Hill sale, by Mr. Rodd of Little Newport Street, for 1*l.* 5*s.*

A portrait of the Countess of Oxford is or was at Mr. Drummond's of Great Stanmore. It was bequeathed to his family by Charles, first Duke of St. Alban's, who was her ladyship's son-in-law.

Of Mrs. Anne Kirke, who was "woman to the queen" Henrietta Maria, there are several portraits. Granger records:

"Madam Kirk. Vandyck p. Gaywood f. h. sh.

"Madam Anne Kirk. Vandyck p. Browne, large h. sh. mezz."

These engravings are most probably from the same painting—the fine whole-length exhibited last year among the collection of pictures by ancient masters in Pall Mall:

"Madam Kirk, sitting in a chair, Hollar, f. h. sh."

He also mentions her miniature at Burghley.

There is at Wilton a splendid painting by Vandyck of Mrs. Kirk, seated with the Countess of Morton, Lady Anne Keith, eldest daughter of George, fifth Earl Mareschal, and wife of William Douglass, seventh Earl of Morton, K.G. She was governess to the Princess Henrietta.

This painting has been engraved by Grousveld. There is another engraving from the first-named Vandyck by Beckett.

Of Lady Vernon and her mother there is to be found mention, in the secret service expenses of Charles II. and James II., lately printed. The elder lady on her husband's death (he was buried in the cloisters of Westminster Abbey, April 5, 1679) seems to have had a pension of 250*l.* per annum. The younger was the recipient, on two occasions, of 100*l.* "bounty" only.

Mrs. Kirke and her daughter Diana are unfavourably alluded to by Mrs. Grace Worthley, a lady of the same class, who will not "be any longer a laughing-stock for any of Mr. Kirk's bastards" (vide letter to her cousin Lord Brandon, September 7, 1682, *Diary of Henry Sidney, Earl of Romney*, i. pp. xxxiii. xxxiv.). And again, the same lady, in another letter, speaks of "the common Countess of Oxford and her adulterous bastards" (*Ibid.*). Mr. Jesse's quotation from "Queries and Answers from Garraway's Coffee House" (vide *The Court of the Stewarts*, vol. ii. p. 366.) may be here reproduced in support of the epitaph which this angry lady has been pleased to assign the countess, who, it would seem, had robbed her, well born and well married, of her noble keeper "the handsome Sidney:"

"Q. How often has Mrs. Kirk sold her daughter Di. before the Lord of Oxford married her?

A. Ask the Prince and Harry Jermyn."

The following curious extract from one of the Heber MSS. at Hodnet has been kindly furnished me by Charles Cholmondeley, Esq., of the Ivy House, Wisbeach, co. Cambridge, to whom the MS. belongs:

"H——,

"Sir Thomas the second baronet's death is mentioned in Lady Rachael Russell's letters. His second wife was one of King Charles's Beauties, but the account in Granger of her is not correct, as it appears that she lived some time with Sir Thomas, as mistress, before their marriage. He left her in great distress, as the profits of the estate were embezzled by attorneys and stewards. The following is a copy from a letter from her to one Squibb, an attorney who had the management of the estate:

'SIR,

'When you were last here you were pleased to say that in some little time I should be payd some money. I have had with me my woman's husband y^t did serve mee about two yeares since; and hee is soe impatient for what I owe her y^t hee will staye noe longer. It is given me to understand I must goe to prison or paye part of w^t I owe him. Things fly to a great violence, and if you thinke it will bee for the credit or advantage of my childerne y^t such an afront should come to mee, is the question. I have nothing to depend on but w^t must come from the estate of Sir Richard Vernon. How I have been used by the trustees you are noe stranger to. I am now forced to live on charity, and I grow every day more and more weary of it. For my children's sake I remain in England, or else I would seeke my fortune elsewhere. Pray to take this into consideration, and see w^t can be done.

'I am, SIR, y^r most humble serv^t,
'VERNON.

'P.S.—If you can, pray doe mee y^e favour to send mee by to-morrow at one of y^e cloke, twenty shillings, to pay for wood, or I must sit wthoute fyer; y^t will be ill for a person confined to the house.'"

It is not certain whether it is to "Mistris Kirke," Lady Vernon's mother, that Charles I. refers in his letter addressed to Colonel Whaley on the day of his escape from Hampton Court, November 11, 1647, but it is very likely to have been so. There was a Mistress (Anne) Kirke, sworn in a dresser to Queen Henrietta Maria in Easter week, 1637 (vide *Strafford Papers*, vol. ii. p. 73.), whose full-length portrait by Vandyke has been frequently engraved, by Browne, Garwood, Hollar, Beckett, &c.; and this lady may be the "Mrs. Anne Kirke, unfortunately drowned near London Bridge," who was buried in Westminster Abbey, July 9, 1641.

In Westminster Abbey was buried, May 23, 1640, "Mr. Kirk's daughter." Captain George Kirke married there, February 10, 1699-1700, Mary Cooke. George Kirke, Esq., died Jan. 10, 1703-4, and was buried in the abbey cloisters (Mon. Inscr.); and Mrs. Mary Kirke died December 17, 1751, and was also buried there (M. I.). We may presume that all these Kirkes were of the same family.

Having now clearly released the annotator from all farther interference with Mary Kirke's private history, and having excluded her handsome face from any future illustrated edition of *Grammont*, I must leave him to deal with Miss Warmistre. It seems most probable that Dr. Thomas Warmistre, dean of Worcester, who died October 30, 1665, was her father, as he is known to have been a Royalist. His will, as it is not to be found at Doctors' Commons, must be sought for at Worcester. His brother Gervais was a married man, but his effects, unfortunately for our inquiries, were administered to at Doctors' Commons, August 31, 1641. That Warmistre was her right name is proved by Lord Cornbury's letter to the Duchess of Bedford, June 10, 1662 (Warburton's *Rupert*, vol. iii. pp. 461-464.). Her portrait is at Hengrave Hall, Suffolk, and has been engraved by Scriven for Carpenter's *Grammont*, 1811.

Lord Cornbury's letter contradicts *Grammont's* statement, that Miss Boynton and Miss Wells came in on a removal, for they were of the original six maids of honour. Among these is named a Miss Price (Henrietta Maria), who we may suppose a sister to the Duchess of York's Miss Price, one of *Grammont's* most conspicuous heroines; and if so, when I come to speak of the Duchess's maids of honour, her parentage will be proved. Of Miss Carey, rejoicing in the prefix of Simona, the sixth of the queen's original maids of honour, we have no farther occasion to speak.

In 1669 the queen appears to have had four maids of honour only, the places vacated by Miss Stewart's and Miss Warmistre's marriages being unoccupied. This state of affairs leads me to doubt whether Miss Bellenden ever held the appointment. Mademoiselle Bardon, *Grammont* admits, was not actually a maid of honour, and Mademoiselle de la Garde certainly never was. LORD BRAYBROOKE has suggested to me, with some show of reason, that the first may be the "Mrs. Baladine" who held a place of less

emolument (that of dresser, probably) in the Duchess of York's household, and who left in the middle of the quarter, between Michaelmas and Christmas, 1662 (vide *Household Book of James Duke of York at Audley End*), as if she had the prudence "de quitter la cour avant que d'en être chassée."

"La désagréable Bardon" may have been a daughter, or some other near relation, to Claudius Bardon, mentioned in the secret service expenses of Charles II.

Mademoiselle de la Garde was appointed a dresser to the queen on her marriage (vide Lord Cornbury's letter), and continued in this office till 1673, when she died. Her father, Charles Peliott Baron de la Garde, or her brother, if she had one, was a groom of the privy chamber to Queen Catherine in 1687, and her mother dresser to the Duchess of York in 1662 (*Duke of York's Household Book*). Mary her sister, who became the wife of Sir Thomas Bond of Peckham, co. Surrey, Baronet, comptroller of the household to Queen Henrietta Maria, was a Lady of the privy chamber to the same queen.

Of mademoiselle I may add, that she married Mr. Gabriel Silvius, carver to the queen, in 1669 (compare first and second editions of *Angliæ Notitia*, 1669); and of her husband, in addition to the particulars already stated by the annotators, that he received the honour of knighthood January 28, 1669-70, married a second wife (a fact overlooked by the annotators, including Mr. Cunningham), viz. Anne, daughter of the Hon. William Howard, a younger son of Thomas first Earl of Berkshire, at Westminster Abbey, November 12, 1677, went the same year to the Hague as master of the household to the Prince of Orange (Evelyn), became privy purse to James II. (*The British Compendium, or Rudiments of Honour*), died at his house in Leicester Fields, January, 1696-7, and was buried in the church of St. Martin. It was his second wife, and widow, who died October 13, 1730.

If, as it is possible, Miss Bellenden did hold the appointment of maid of honour to the queen, she must have replaced Miss Stewart or Miss Warmistre; and if Miss Livingston and Miss Fielding held like appointments, one of the two must have replaced her, and they, again, must

have removed from the court before 1669. I am not at present able to say who those three ladies were.

Before bringing this paper to a conclusion, I must be permitted to refer Mr. Cunningham to five letters, written by Count de Comminges, the French ambassador in London, and printed LORD BRAYBROOKE in his Appendix to Pepys, which Mr. C. has very unaccountably overlooked when settling the chronology of Grammont.

The first, to M. de Lionne, dated "Londres, Janvier 5-15, 1662-3," announces the arrival of the Chevalier the day before "fort content de son voyage. Il a été ici reçu le plus agréablement au monde. Il est de toutes les parties du Roi." The second, to Louis XIV., dated "Décembre 10-20, 1663," informs the king of the chevalier's joy at being allowed to return to France, and of his intention to leave England in four days. He also informs Louis that he believes the chevalier will see the court of France in company of "une belle Anglaise." A postscript, dated "Décembre 20-24," says that the king of England, for certain stated reasons, has persuaded the chevalier to remain a day longer; and, farther, "Il laisse ici quelques autres dettes, qu'il prétend venir recueillir quand il se déclarera sur le sujet de Mille Hamilton, qui est si embrouillé que les plus clairvoyans n'y voyent goutte." The third, dated "Mai 19-24, 1664," is also to the King of France, and speaks of the Chevalier's wife, "madame sa femme." The next letter is addressed to M. de Lionne, and dated "Aout 29, Septembre 8, 1664." It contains this important intelligence: "Madam la Comtesse de Grammont accoucha hier au soir d'un fils beau comme la mère, et galant comme le père." The last letter, dated "Octobre 24, Novembre 3, 1664," and addressed to the same M. de Lionne, commences as follows: "Le Comte de Grammont est parti aujourd'hui avec sa femme."

These several letters, all important to the annotators of Grammont, give the precise dates of the chevalier's first visit to the Court of Charles II., and of his departure, and settle the date of his marriage within a few days. This event must have taken place in December, 1663. Mrs. Jameson and Mr. Cunningham place it in 1668.

On another occasion I will return to this subject.

G. STEINMAN STEINMAN.

CHANGE OF MEANING IN PROVERBIAL EXPRESSIONS.

I entirely agree with G. K. (Vol. viii., p. 269.) respecting the original sense of "Putting a spoke in one's wheel." It surely meant to aid him in constructing the wheel, say of his fortune. As the true sense of this expression seems to have been retained in America when lost in its birthplace, so Ireland has retained that of another which has changed its sense here. By "finding a mare's nest" is, I believe, meant, fancying you have made a great discovery when in fact you have found nothing. I certainly remember the late Earl Grey using it in that sense in his place in parliament. But how does this accord with the following place in Beaumont and Fletcher?

"Why dost thou laugh?

What mare's nest hast thou found?"—*Bonduca*, Act V. Sc. 2.

on which, rather to my surprise, Mr. Dyce has no note. Now in Ireland, when a person is seen laughing immoderately without any apparent cause, it is usual to say, "O, he has found a mare's nest, and he's laughing at the eggs." This perfectly agrees with the above passage from *Bonduca*, and is doubtless the original sense and original form of the adage.

There is another of these proverbial expressions which, I think, has also lost its pristine sense. By "Tread on a worm and it will turn" is usually meant that the very meekest and most helpless persons will, when harshly used, turn on their persecutors. But the poor worm does, and can do, no such thing. I therefore think that the adage arose at the time when *worm* was inclusive of snake and viper, and that what was meant was, that as those that had the power to avenge themselves when injured would use it, so people should be cautious how they provoked them. I am confirmed in this view by the following passage in the *Wallenstein's Tod* of Schiller, Act II. Sc. 6.:

"Doch einen Stachel gab Natur dem Wurm,
Dem Willkür übermüthig spielend tritt."

THOS. KEIGHTLEY.

EXTRACTS FROM COLCHESTER CORPORATION RECORDS.

I inclose you some rather curious extracts from the corporation books of Colchester, which I made a few years since, during an investigation of some of the charities of that ancient borough.

JAS. WHISHAW.

"The informacōn of Richard Glascock of Horden-of-the-Hill, in the County of Essex, Cordwayner, aged twenty-four yeeres or thereabouts, taken upon oath the 5th of June, 1651, before Jno. Furlie, Gent., Mayor of the Towne of Colchester.

"The Informant saieth, that upon the Lord's daie, the fower and twentieth daie of May last, that W^m Beard of Horden abovesaid, did cut off the taile of the catt of Thomas Burgis of Fanies Pische, and Margaret, the wife of the s^d Tho^s Burgis, after the catt's taile was cutt off, came home, and seeing that her catt's taile had bin cutt off she enquired who had done it, and being told that the s^d W^m Beard had done it, she s^d she would be even wth him before he went out of towne.

"RICHARD GLASCOCK."

"The informacōn of H^y Potter, aged twenty yeeres or thereabouts, of Horden abovesaid, Lynnen Weaver, taken upon oath the day and yeere abovesaid.

"This informant saieth, that y^e s^d fower and twentieth daie of May the taile of the catt of the s^d Thomas Burgis being cutt off by the s^d W^m Beard, and y^e s^d Margaret the wife of the s^d Tho^s Burgis haveing bin told that the s^d W^m Beard had done it, she p^rsentlie told the s^d Beard she would be even with him before he went out of towne, and flewe in his face, and said she would give him something before he went out of her howse. And this informant saieing, Good woman, I hope you will give him noe poyson, and she replied, he would not be soe foolish as

to take any thinge of her, but she would be even wth him before he went out of towne."

"HENRY POTTER."

"The informacōn of R^d Spencer, aged thirtie yeeres or thereabouts, Servant to Captⁿ Thomas Caldwell, taken upon oath the day and yeere aforesaid.

"This informant saieth, that the before-named W^m Beard being very sicke and in a strange distemper, and haveing heard that Margaret, the wife of the before-named Thomas Burgis, had threatened him, did suspect the s^d W^m Beard might be bewitched or ill dealt wth, did cut off some of his haire off from his head, and did wind it up together and put it into the fire, and could not for a good while make it burne, untill he tooke a candle and put under it or into it, and then wth much adoe it did burne, and after it was burnt y^e s^d Beard laie still, and before it was burnt he was in such a distemper that three men could hardlie hold him into his bed.

"RICHARD SPENCER.
"his + mark."

CONVOCATION IN THE REIGN OF GEORGE II.

One hears it so often repeated, that Convocation was finally suppressed in 1717, in consequence of the accusations brought by the Lower House against Bishop Hoadley, that it seems worth while noting in correction of this, that though no licence from the Crown to make canons has ever been granted since that time, yet that Convocation met and sat in 1728, and again for some sessions in the spring of 1742, when several important subjects were brought before it; among which was the very interesting question of curates' stipends, in these words:

"VIIth. That much reproach is brought upon the beneficed, and much oppression upon the unbeneficed, clergy, by curates accepting too

scanty salaries from incumbents."

and which was really the last subject that was ever brought before Convocation. On Jan. 27, 1742, it was unanimously agreed, that "the motion made by the Archdeacon of Lincoln concerning ecclesiastical courts and clandestine marriages, the qualifications of persons to be admitted into holy orders, and the salaries and titles of curates," should be "reduced into writing, and the particulars offered to the House at their next assembly." But in the next session, on March 5, 1742, the Prolocutor, Dr. Lisle, was afraid to go on with the business before the House, and after "speaking much of a *præmunire*," and "echoing and reverberating the word from one side of good King Henry's Chapel to the other," the whole was let drop; and Convocation was fully consigned to the silence and the slumber of a century. The whole of these transactions are detailed in a scarce pamphlet, *A Letter to the Rev. Dr. Lisle, Prolocutor of the Lower House*, by the Archdeacon of Lincoln (the Venerable G. Reynolds).

W. FRASER.

Tor-Mohun.

PARALLEL PASSAGES.

(Vol. iv., p. 435.; Vol. vi., p. 123.; Vol. vii., p. 151.)

1. "When she had passed it seemed like the ceasing of exquisite music."—Longfellow's *Evangeline*, Part i. I.

"When she comes into the room, it is like a beautiful air of Mozart breaking upon you."—Thackeray "On a good-looking young Lady." (Quoted in *Westminster Review*, April 1853.)

2. "Two stars keep not their motion in one sphere."—Whence?

"We are the twin stars, and cannot shine in one sphere. When he rises I must set."—Congreve, *Love for Love*, Act III. Sc. 4.

3. "Et ce n'est pas toujours par valeur et par chasteté que les hommes sont vaillants et que les femmes sont chastes."—De La Rochefoucauld, *Max*. I.

"Yes, faith! I believe some women are virtuous, too; but 'tis as I believe some men are valiant, through fear."—Congreve, *Love for Love*, Act III. Sc. 14.

4. "Mais si les vaisseaux sillonnent un moment les ondes, la vague vient effacer aussitôt cette légère marque de servitude, et la mer reparait telle qu'elle fut au premier jour de la Création."—*Corinne*, b. 1. ch. 4.

"Such as Creation's dawn beheld, thou rollest now!"—Byron, *Childe Harold*.

5. "Il est plus honteux de se méfier de ses amis que d'en être trompé."—De La Rochefoucauld, *Max*. LXXXIV.

"Better trust all, and be deceived,
And weep that trust, and that deceiving,
Than doubt one heart that, if believed,
Had blessed thy life with true believing!

"Oh! in this mocking world, too fast
The doubting fiend o'ertakes our youth:
Better be cheated to the last,
Than lose the blessed hope of truth!"—Mrs. Butler (Fanny Kemble).

6. In "N. & Q.," Vol. iv., p. 435., I cited, as a parallel to Shelley, the following from Southey's *Doctor*, vol. vi. p. 158.:

"The sense of flying in our sleep might, he thought, probably be the anticipation or forefeeling of an unevolved power, like an Aurelia's dream of butterfly motion."

In Spicer's *Sights and Sounds* (1853), p. 140., is to be found a poem professing to have been "dictated by the spirit of Robert Southey," on

March 25, 1851, the fourth stanza of which runs as follows:

"The soul, like some sweet flower-bud yet unblown,
Lay tranced in beauty in its silent cell:
The spirit slept, but dreamed of worlds unknown,
As dreams the chrysalis within its shell,
Ere summer breathes its spell."

What inference should be drawn from this coincidence for or against the reality of the "spiritual dictation?"

HARRY LEROY TEMPLE.

SHAKSPEARE CORRESPONDENCE.

Shakspeare's Works with a Digest of all the Readings (Vol. viii., pp. 74. 170. 362.).—I am exceedingly obliged to your correspondent ESTE for his suggestions, and need not say that any sincere advice will be most respectfully considered. In the second volume of my folio edition of Shakspeare, I am partially endeavouring to carry out the design to which he alludes, by giving a digest of all the readings up to the year 1684. How is it possible to carry out his wish farther with any advantage? I should feel particularly thankful for a satisfactory reply to the following questions in relation to this important subject:—1. As many copies of the first and other folio editions, as well as nearly all the copies of the same quarto editions, differ from each other, how are these differences to be treated? What copies are to be taken for texts, and how many copies of each are to be collated? 2. Are such books as Beckett, Jackson and others, to be examined? If not, are *any* conjectural emendations of the last and present centuries to be given? Where is the line to be drawn? A mere selection is valueless, or next to valueless; because, setting aside the differences in opinion in such matters, we want to know what conjectures are new, and which are old? 3. Are the various readings suggested in periodicals to be given? 4. Can any positive and practical rules be furnished, likely to render such an undertaking useful and successful?

J. O. HALLIWELL.

Minor Notes.

Local Rhymes, Kent.—

"Between Wickham and Welling
There's not an honest man dwelling;
And I'll tell you the reason why,
Because Shooters' Hill's so nigh."

Unless this is preserved in "N. & Q." it will probably be forgotten with the highwaymen, whose proceedings at Shooters' Hill, no doubt, originated it.

G. W. SKYRING.

Samuel Pepys's Grammar.—I have lately been looking over the *Diary* of this very clever person, and I confess it has surprised me to find him, a graduate of Cambridge, and, in fact, I may say a man of letters, constantly employing such vulgar bad grammar as "he *do* say," and such like. I am the more surprised when, on looking at his letters, even the familiar ones to his cousin Roger and to W. Hewer, I can find nothing of the kind, they being as grammatical and as well written as any of the time.

My hypothesis is—LORD BRAYBROOKE can correct me if I am wrong—that Pepys, writing his *Diary* in short-hand, used one and the same character for all the persons of the present tense of *do*, and that the decypherer did not attend to this circumstance. In his letter to Col. Legge (vol. v. p. 296.), Pepys writes "His R. H. *does* think," &c., which in the *Diary* would surely be "His R. H. *do* think," &c. In a similar way I would account for the use of *come* instead of *came* in the *Diary*, as there is nothing of the kind in the Letters. Should I be right, I may have rendered a slight service to the memory of an able and worthy man.

THOS. KEIGHTLEY.

Roman Remains.—In Wright's *Celt, Roman, and Saxon*, p. 207., a curious Roman altar, dedicated to Silvanus, "ab aprum eximiæ forme captum," is mentioned as found at Durham. It was found in the wild district to the west,

in the neighbourhood of Stanhope in Weardale, and is preserve in the rectory house there.

P. 330., figure A. This armilla (?) was not found in Northumberland, but in Sussex, together with several others of the same form, a torques and celts.

W. C. TREVELYAN.

Wallington.

To grab.—A very popular writer has lately rightly denounced the use of this word as a vulgarism. Like many other monosyllables used by our working classes, it may plead antiquity in extenuation of its vulgarity. It has been derived from the Welsh word *grabiaw*, to grasp, and in ancient times was one of our "household words." The retention by a tailor of a portion of the cloth delivered to him, although it had been a usage from time immemorial, might have been considered by our forefathers as a *grabbage*: we now call it *cabbage*.

N. W. S.

Curfew at Sandwich.—Sometime back it was stated that the curfew at Sandwich had been discontinued. It has been resumed in consequence of the opposition made by the inhabitants. The same occurred about twenty years ago. (From information on the spot.)

E. M.

Ecclesiastical Censure.—Ecclesiastical censure was often used in the Middle Ages to enforce civil rights, specially that of the exemption of the clergy from the judgment of a lay tribunal. The following instance thereof is new to me. I have copied it from "Collectanea Gervasii Holles," vol. i. p. 529., Lansdowne MS. 207., in the British Museum:

"Ex Archis Linc. a^o 1307.

"The Major and Burgesses of Grimesby hanged a Preist for theft called Richard of Notingham. Hereupon yē B^p sendes to yē Abbott of Wellow to associate to himselfe twelue adjacent chapleins to examine yē cause, and in St. James his Church Excommunicates all y^t had any hand in it of whatsoever condition they were, yē King, Queen, and Prince of

Wales excepted; and yē B^p himselfe did Excommunicate them in yē Cathedral Church of Lincolne, yē fifth of yē Ides of Aprill following."

EDWARD PEACOCK.

Bottesford Moors, Kirton-in-Lindsey.

The Natural History of Balmoral.—Dr. William Macgillivray, Professor of Civil and Natural History in the Marischal College of Aberdeen, and who died there Sept. 5, 1852, left an unpublished MS. on "The Natural History of Balmoral and its Neighbourhood." This work has been purchased from his executors by His Royal Highness Prince Albert; and is to be printed for the use of Her Majesty and the Royal Family, and for circulation among their august relatives. It was the last work on which the distinguished author was engaged, and was only completed a short time previous to his death. It also contains some curious speculations regarding several plants and herbs of that Alpine district, and their uses in a medicinal and domestic point of view, as known to the ancient Caledonians and Picts. Altogether it is a most interesting work.

W.

Shirt Collars.—In Hone's *Every-day Book*, vol. ii. p. 381., I find the following, which I think is after the present ridiculous fashion of wearing shirt collars, viz. so tight round the neck, and so stiff, that it is a wonder there are not some serious accidents.

These collars, at present worn by the fast young men of the day, are called "The Piccadilly three-folds." Now, if this goes on until they get to a "nail in depth, and stiffened with yellow starch, and *double wired*," I think it will only be proper to put a heavy tax upon them.

"*Piccadilly.*—The picadil was the round hem, or the piece set about the edge or skirt of a garment, whether at top or bottom; also a kind of *stiff collar*, made in fashion of a band, that went about the neck and round about the shoulders: hence the term 'wooden piccadilloes' (meaning the pillory) in *Hudibras*; and see Nares' *Glossary*, and Blount's *Glossographia*. At the time that ruffs and picadils were much in fashion, there was a celebrated ordinary near St. James's, called *Piccadilly*: because, as some say, it was the outmost, or skirt-house,

situate at the hem of the town: but it more probably took its name from one Higgins, a tailor, who made a fortune by picadils, and built this with a few adjoining houses. The name has by a few been derived from a much frequented shop for the sale of these articles; this probably took its rise from the circumstance of Higgins having built houses there, which however were not for selling ruffs; and indeed, with the exception of his buildings, the site of the present Piccadilly was at that time open country, and quite out of the way of trade. At a later period, when Burlington House was built, its noble owner chose the situation, then at some distance from the extremity of the town, that *none might build beyond* him. The ruffs formerly worn by gentlemen were frequently *double wired*, and *stiffened with yellow starch*: and the practice was at one time carried to such an excess, that they were limited by Queen Elizabeth '*to a nayle of a yeard in depth*.' In the time of James I., they still continued of a preposterous size: so that, previous to the visit made by that monarch to Cambridge in 1615, the Vice-chancellor of the University thought fit to issue an order, prohibiting 'the fearful enormity and excess of apparel seen in all degrees, as, namely, *strange piccadilloes*, vast bands, huge cuffs, shoe roses, tufts, locks, and tops of hair, unbeseeming that modesty and carriage of students in so renowned a university.'"

It is scarcely to be supposed that the ladies were deficient in the size of their ruffs, &c.

I must conclude this in the words of the immortal poet:

" New fashions,
Though they be never so ridiculous,
Nay, let them be unmanly, yet are followed."

H. E.

Queries.

"DAYS OF MY YOUTH."

The following lines are understood to have been written by the late Mr. St. George Tucker of Virginia, U. S. Any information in support of this opinion, or, if it be unfounded, in disproof of it, is requested by

T.

DAYS OF MY YOUTH.

Days of my youth! ye have glided away,
Hairs of my youth! ye are frosted and gray;
Eyes of my youth! your keen sight is no more;
Cheeks of my youth! ye are furrow'd all o'er;
Strength of my youth! all your vigour is gone;
Thoughts of my youth! all your visions are flown!

Days of my youth! I wish not your recall,
Hairs of my youth! I'm content you should fall;
Eyes of my youth! ye much evil have seen;
Cheeks of my youth! bathed in tears have you been;
Thoughts of my youth! ye have led me astray;
Strength of my youth! why lament your decay!

Days of my age! ye will shortly be past;
Pains of my age! yet awhile can ye last;
Joys of my age! in true wisdom delight;
Eyes of my age! be religion your light;
Thoughts of my age! dread not the cold sod,
Hopes of my age! be ye fix'd on your God!—ST. GEORGE TUCKER, Judge.

Minor Queries.

Randall Minshull and his Cheshire Collections.—Of what family was Randall Minshull, who, in the Addenda to Gower's *Sketch for a History of Cheshire*, p. 94., is stated to have professedly made a collection for the *Antiquities of Cheshire* by the desire of Lord Malpas? and where is such collection at the present time to met with?

CESTRIENSIS.

Mackey's "Theory of the Earth."—I have a small pamphlet entitled,

"A New Theory of the Earth and of Planetary Motion; in which it is demonstrated that the Sun is Vicegerent of his own System. By Sampson Arnold Mackey, author of *Mythological Astronomy* and *Urania's Key to the Revelations*, &c. Norwich, printed for the Author."

There is no date on the title-page, but a notice on the second page indicates 1825. The book is extraordinary, and shows great astronomical and philological attainments, with some startling facts in geology, and bold theories as to the formation of the earth. I have endeavoured to procure the other two works of which Mr. Mackey is said to be the author, and also some account of him, but without success. I can hardly suppose that a writer of so much ability and learning can be unknown, and shall feel much obliged by any information as to him or his writings.

J. WARD.

Coventry.

Birthplace of King Edward V.—Can you give me any information as to the exact birthplace of this monarch?

Hume (vol. ii. p. 430.) merely says that he was born while his mother was in sanctuary in London, and his father was a fugitive from the victorious Earl of Warwick.

Commynes (book iii. chap. 5.) also says that she took refuge "es franchises qui sont à Londres," and "y accoucha d'ung filz en grant povreté."

Chastellain, at p. 486. of his *Chronique*, says: "Elle alla à Sainte-Catherine, une abbeye, disoient aucuns: aucuns autres disoient à Vasemonstre (Westminster), lieu de franchise, qui oncques n'avoit esté corrompu."

I should be glad to have some more definite information on this point, if any of your readers can supply it.

A LEGULEIAN.

Name of Infants.—In Scotland there is a superstition that it is unlucky to tell the name of infants before they are christened. Can this be explained?

R. J. A.

Geometrical Curiosity.—Take half a sheet of note-paper; fold and crease it so that two opposite corners exactly meet; then fold and crease it so that the remaining two opposite corners exactly meet. Armed with a fine pair of scissors, proceed now to repeat both these folds alternately without cessation, taking care to cut off quite flush and clear all the overlappings on both sides after each fold. When these overlappings become too small to be cut off, *the paper is in the shape of a circle, i. e.* the ultimate intersection of an infinite series of tangents. Perhaps PROFESSOR DE MORGAN will give the *rationale* of this procedure.

C. MANSFIELD INGLEBY.

Birmingham.

Denison Family.—Can any correspondent of "N. & Q." inform me how the Denisons of Denbies, near Dorking, in Surrey, and the Denisons of Ossington, in Nottinghamshire, were related? Who was Mr. Robert Denison of Nottingham, who took a very active part in politics at the commencement of the French Revolution? His wife had a handsome legacy from a rich old lady, one Mrs. Williams, of whom I would much like to know something farther.

E. H. A.

"*Came.*"—In Pegge's *Anecdotes of the English Language*, p. 189., we read:

"The real preterit of the Saxon verb *coman*, is *com*. *Came* is therefore a violent infringement, though it is impossible to detect the innovator, or any of his accomplices."

When was the word *came* introduced into our language? Early instances of its use would be very welcome.

H. T. G.

Hull.

Montmartre.—By some this name is derived from *mons martis*; by others from *mons martyrum*. Which is the more satisfactory etymology, and upon what authority does it rest?

HENRY H. BREEN.

St. Lucia.

Law of Copyright: British Museum.—Observing that the *new* law of copyright, which was passed and came into operation on the 1st of July, 1842, *expressly repeals* all of the statutes previously existing on that subject, I am anxious to know, through the medium of "N. & Q.," if the British Museum authorities can claim and enforce the delivery of any book, *although not entered on the books of Stationers' Hall*, which may have been printed and published *before* the passing of the said act of 1842. If so, then what is the state of the act or statute which bears upon that particular privilege?

J. A.

Glasgow.

Veneration for the Oak.—The oak—"the brave old oak"—has been an object of veneration in this country from the primæval to the present times. The term *oak* is used in several places in Scripture, but nowhere does it appear to refer to the oak as we know it—*our indigenous oak*. The *oak*, under which God appeared to Abraham, bears apparently a resemblance to the *tree of life* of the Assyrian sculptures; and, perhaps, the *Zoroastrian Homa*, or sacred tree, and the *sacred tree of the Hindus*; and the same may yet be found in the *British oak*. Is there a botanical affinity between these

trees? Are they all *oaks*? Was the *tree of life*, as described in the Bible, an *oak*?

G. W.

Stansted, Montfichet.

Father Matthew's Chickens.—Can any of your correspondents explain why grouse in Scotland are sometimes called "Father Matthew's chickens?"

M. R. G.

Pronunciation of Bible and Prayer Book proper Names.—I feel sure that many of your clerical correspondents would feel much obliged by any assistance that might be forwarded them through the medium of your columns respecting the correct pronunciation of those proper names which occur during divine service: such as Sabaoth, Moriah, Aceldama, Sabachthani, Abednego, and several others of the same class.—The opinions already given in publications are so contradictory, that I have been induced to ask you to insert this Query.

W. SLOANE SLOANE-EVANS.

Cornworthy Vicarage, Totnes.

MSS. of Anthony Bave.—I possess a volume of MS. Sermons, Treatises, and Memorandums in the autograph of one Anthony Bave, who appears, from the doctrines broached therein, to have been a moderate Puritan. What is known concerning him? It is a book I value much from the beauty of the writing and the vigorous style of the discourses.

R. C. WARDE.

Kidderminster.

Return of Gentry, temp. Hen. VI.—In what collection, or where, can the Return of Gentry of England 12th Henry VI. be seen or met with?

GLAIUS.

Taylor's "Holy Living."—In Pickering's edition of this work (London, 1848), *some* of the quotations are placed in square brackets (*e. g.* on p. xii.); and *some* of the paragraphs have an asterisk prefixed to them (as on p. 8.). Why?

A. A. D.

Captain Jan Dimmeson.—Can any one give me some information about him? I find his name on a pane of glass, with the date of 1667, in the vicinity of Windsor. I had not an opportunity to obtain a copy of some words that were painted on the glass, beneath a fine flowing sea with a ship in full sail upon its bosom.

F. M.

Greek and Roman Fortification.—Where can I obtain an account of Greek and Roman fortification? I am surprised to find that Smith's *Classical Dictionary* has no article upon that subject.

J. H. J.

The Queen at Chess.—In the old titles of the men at chess, the queen, who does all the hard work, was called the prime minister, or grand vizier. When did the change take place, and who thought of giving all the power to a woman? Truly in the game "woman is the head of the man," reversing the just order.

C. S. W.

Vida on Chess.—I have had in my possession for more than five years a translation of *Vida on Chess*. It is in the handwriting of a celebrated poet of the last century; but whether a mere transcript or a version of his own, is more than I can affirm. Now, I shall feel obliged by any information on the subject, whether positive or negative, and transcribe the exordium with that view. It is not the version which was made by George Jeffreys, and revised by *Alexander Pope*^[1]:

"Vida's Scacchis, or Chess."

"Armies of box that sportively engage,
And mimic real battels in their rage,
Pleas'd I recount; how smit with glory's charms,
Two mighty monarchs met in adverse arms,
Sable and white: assist me to explore,
Ye Serian nymphs, what ne'er was sung before."

Bolton Corney.

Footnote 1:[\(return\)](#).

The only one which I have seen.

Minor Queries with Answers.

Thornton Abbey.—Can any of your readers give me some information respecting an old and ruinous building called "Thornton Abbey," situate about ten miles from Grimsby, Lincolnshire, and also about two miles from the river Humber?

VICTOR.

Grimsby.

[Tanner states, the house was called Thorneton Curteis, and Torrington. It was founded by William le Gros, Earl of Albemarle, and Lord of Holderness, about the year 1139, for Austin Canons, and was dedicated to the Virgin Mary. Dugdale says, that when first founded it was a priory, and the monks were introduced from the monastery of Kirkham; but was changed into an abbey by Pope Eugenius III., A.D. 1148. Though Henry VIII. suppressed the Abbey, he reserved the greater part of the lands to endow a college, which he erected in its room, for a dean and prebendaries, to the honour of the Holy and Undivided Trinity. From the remains it must have been a magnificent building. Originally it consisted of an extensive quadrangle, surrounded by a deep ditch, with high ramparts, and built in a style adapted for occasional defence. To the east of the gateway are the remains of the abbey church. The chapter-house, part of which is standing, was of an octangular shape, and highly decorated. On the south of the ruins of the church is a building, now occupied as a farm-house, which formerly was the residence of the abbots. It was afterwards the seat of Edward Skinner, Esq., who married Ann, daughter of Sir William Wentworth, brother to the unfortunate Earl of Strafford. The estate was purchased from one of the Skinner family by Sir Richard Sutton, Bart.; it is now in the possession of Lord Yarborough. In taking down a wall in the ruins of the abbey, a human skeleton was found, with a table, a book, and a candle-stick. It is supposed to have been the remains of the fourteenth abbot, who, it is stated, was for some crime sentenced to be immured—a mode of capital punishment not uncommon in monasteries. Four views of the abbey are given in Allen's *History of Lincolnshire*, vol. ii., and some farther notices of its ancient state will be found in Dugdale's *Monasticon*, vol. vi. pl. i. p. 324.; Tanner's *Notitia*, Lincolnshire, lxxvii.; and *Beauties of England and Wales*, vol. ix. p. 684.]

Bishop Wilson's "Sacra Privata."—In the new edition of this work, p. 381., there is given a table of "The Collects, with their Tendencies." Under the head of Fasting, references are made to the First Sunday in Lent, *and the Tenth and Twenty-third after Trinity.*—There must be some mistake in this, as the last two collects refer to prayer. This for your correspondent MR. DENTON, to whom I understand the Church is indebted for the redintegration of the good bishop's journal.

A. A. D.

[We have submitted the above to the REV. WILLIAM DENTON, who expresses his obligations to A. A. D. for pointing out the error, which seems to have escaped the notice of all the previous editors of the *Sacra Privata*. The second edition is now at press, and, if not too late, the correction will be made. MR. DENTON doubts whether the list after all is the bishop's; but thinks it was only copied by him from some work. Can any one point out the source? It is singular that another mistake of the bishop's should have escaped the notice of all previous editors, namely, the tendency of the collect for Whit-Sunday being described as *Humiliation* instead of *Illumination*.]

Derivation of "Chemistry."—Are there any historical reasons for deriving the word *chemistry* from *Chemi*, the name of Egypt, as is done by Bunsen and others?

T. H. T.

[Dr. Thomson, the writer of the article "Chemistry" in the *Encyclopædia Britannica*, thus notices this derivation: "The generally received opinion among alchymistical writers was, that chemistry originated in Egypt; and the honour of the invention has been unanimously conferred on Hermes Trismegistus. He is by some supposed to be the same person with Chanaan, the son of Ham, whose son Mizraim first occupied and peopled Egypt. Plutarch informs us that Egypt was sometimes called *Chemia*: this name is supposed to be derived from Chanaan. Hence it was inferred that Chanaan was the inventor of *chemistry*, to which he affixed his own name. Whether the Hermes of the Greeks was Chanaan, or his son Mizraim, it is impossible to decide; but to Hermes is assigned the invention of *chemistry*, or *the art of making gold*, by almost the unanimous consent of the adepts." Dr. Webster says, "The orthography of this word has undergone changes through a mere ignorance of its origin, than which nothing can be more obvious. It is the Arabic *kimia*, the occult art or science, from *kamai*, to conceal. This was originally the art or science now called alchemy; the art of converting baser metals into gold." Webster says the correct orthography is *chimistry*.]

Burning for Witchcraft.—When and where was the last person burned to death for witchcraft in England?

W. R.

[We believe the last case of burning for witchcraft was at Bury St. Edmunds in 1664, tried by Sir Matthew Hale, although some accounts state that the victims, Amy Duny and Rose Callender, were executed. In the same year Alice Hudson was burnt at York for having received 10s. at a time from his Satanic majesty. The last case of burning in Scotland was in Sutherland, A.D. 1722: the judge was Captain David Ross, of Little Dean. At Glarus, in Ireland, a servant girl was burnt so late as 1786. The last authenticated instance of the swimming ordeal occurred in 1785, and is quoted by Mr. Sternberg from a *Northampton Mercury* of that year:—"A poor woman named Sarah Bradshaw, of Mears Ashby, who was accused of being a witch, in order to prove her innocence, submitted to the ignominy of being dipped, when she immediately sunk to the bottom of the pond, which was deemed to be an incontestable proof that she was no witch!"]

The Small City Companies.—Where does the fullest information appear respecting their early condition, &c.? Herbert's work only occasionally refers to them, and I am aware of many incidental notices of them in Histories of London, &c.; but it does not amount to much, and I should be

glad to know if there is no fuller account of them. The companies of Pewterers or Bakers, for example.

B.

[Beside the incidental notices to be found in Stow, Maitland, and Seymour, our correspondent must consult the Harleian MSS.; and if he will turn to the Index volume at p. 294., he will find references to the following companies:—Bakers', Drapers', Painters', Stainers', Pinners', Scriveners', Skinners', Wax-chandlers', Wharfingers', Weavers', and other miscellaneous notes relating to the city of London generally.]

Rousseau and Boileau.—Are there any full and complete English translations of Rousseau's *Confessions* and Boileau's *Satires*?

ALLEDIUS.

[The following translations have been published:—*The Confessions of J. J. Rousseau*, in two Parts, London, 12mo., five vols., 1790; Boileau's *Satires*, 8vo., 1808: see also his *Works* made English by Mr. Ozell and others, two vols. 8vo., London, 1711-12, and three vols. 8vo., London, 1714.]

Bishop Kennett's MS. Diary.—Where is Bishop Kennett's MS. Diary, from which his often-cited description of Dean Swift is taken, to be found? Sir Walter Scott (Swift's *Works*, vol. xvi. p. 76.) says "it was formerly in the possession of Lord Lansdowne, and is now in the British Museum." I have never been able to find it.

F. B.

[The *Diary* here referred to by Sir Walter Scott will be found at p. 428. in Lansdowne MS. 1024., which forms the third and last volume of Bishop Kennett's "Materials for an Ecclesiastical History of England."]

Replies.

MILTON'S WIDOW.

(Vol. vi., p. 596.; Vol. vii., pp. 12. 134. 200. 375.)

It may be worth recording, that among the MS. papers of the late James Boswell, which were I believe sold by auction by Messrs. Sotheby and Co., there was the office copy and probate of the will of Milton's widow. She was described as Elizabeth Milton of Namptwich, widow; and it was dated the 27th of August, 1727. In the will she bequeathed all her effects, after the payment of her debts, to be divided between her nieces and nephews in Namptwich; and named as her executors, Samuel Acton and John Allcock, Esqs. Probate was granted to John Allcock, October 10, 1727.

Beside this, there was a bond or acquittance, dated 1680 from Richard Mynshull, described of Wistaston in Cheshire, frame-work knitter, for 100*l.* received of Mrs. Elizabeth Milton in consideration of a transfer to her of a lease for lives, or ninety-nine years, of a messuage at Brindley in Cheshire, held under Sir Thomas Wilbraham.

There were also receipts or releases from Milton's three daughters, Anne Milton, Mary Milton, and Deborah Clarke (to the last of which Abraham Clarke was a party): the first two dated Feb. 22, 1674; the last, March 27 in the same year; for 100*l.* each, received of Elizabeth Milton their step-mother in consideration of their shares of their father's estate. The sums were, with the consent of Christopher Milton and Richard Powell, both described of the Inner Temple, to be disposed of in the purchase of rent-charges or annuities for the benefit of the said daughters.

Two of these documents appear to be now in the possession of your correspondents MR. MARSH and MR. HUGHES; but I have met with no mention hitherto of the destination of the others.

These may seem trifling minutiae to notice, but nothing can fairly be considered unimportant which may lead to the elucidation of the domestic history of Milton.

S. W. SINGER.

Mickleham.

OATHS.

(Vol. viii., p. 364.)

There can be no doubt that, as your correspondent suggests, the judicial oath was originally taken without kissing the book, but with the form of laying the right hand upon it; and, moreover that this custom is of Pagan origin. Amongst the Greeks, oaths were frequently accompanied by sacrifice; and it was the custom to lay the hands upon the victim, or upon the altar, thereby calling to witness the deity by whom the oath was sworn. So Juvenal, *Sat.* XIV. 218.:

"Falsus erit testis, vendet perjuriam summa
Exigua, et Cereris tangens aramque pedemque."

Christians under the later Roman emperors adopted from the Greeks a similar ceremony. In the well-known case of *Omychund v. Barker*, heard in Michaelmas Term, 1744, and reported in 1 Atk. 27., the Solicitor-General quoted a passage from Selden, which gives us some information on this point:

"Mittimus hic, principibus Christianis, ut ex historiis satis obviis liquet, solennia fuisse et peculiaria juramenta, ut per vultum sancti Lucae, per pedem Christi, per sanctum hunc vel illum, ejusmodi alia nimis crebra: *Inolevit hero tandem, ut quemadmodum Pagani sacris ac mysteriis aliquo suis aut tactis aut præsentibus jurare solebant, ita solenniora Christianorum juramenta fierent, aut tactis sacrosanctis evangeliis, aut inspectis, aut in eorum præsentia manu ad pectus amota, sublata aut protensa; atque is corporaliter seu personaliter*

juramentum præstari dictum est, ut ab juramentis per epistolam, aut in scriptis solummodo præstitis distingueretur, inde in vulgi passim ore."

Lord Coke tells us, in the passage quoted at p. 364., that this was called the corporal oath, because the witness "toucheth with his hand some part of the Holy Scripture;" but the better opinion seems to be, that it was so called from the ancient custom of laying the hands upon the *corporale*, or cloth which covered the sacred elements, by which the most solemn oath was taken in Popish times.

As to the form of kissing the book, I am inclined to think that it is not of earlier date than the latter part of the sixteenth century, and that it was first prescribed as part of the ceremony of taking the oaths of allegiance and supremacy. In the *Harl. Misc.*, vol. vi. p. 282. (edit. 1810), is an account of the trial of Margaret Fell and George Fox, for refusing to take the oath of allegiance, followed by "An Answer to Bishop Lancelot Andrewe's Sermon concerning Swearing." At p 298., Fox brings forward instances of conscientious scruples among Christians in former times, respecting the taking of oaths. He says:

"Did not the Pope, when he had got up over the churches, give forth both oath and curse, with bell, book, and candle? And was not the ceremony of his oath, to lay three fingers a-top of the book, to signify the Trinity; and two fingers under the book, to signify damnation of body and soul if they swear falsely? And was not there a great number of people that would not swear, and suffered great persecution, as read the *Book of Martyrs* but to Bonner's days? And it is little above an hundred years since the Protestants got up; and they gave forth the oath of allegiance, and the oath of supremacy: the one was to deny the Pope's supremacy, and the other to acknowledge the kings of England; so we need not tell to you of their form, and show you the ceremony of the oath; it saith, 'Kiss the book;' and the book saith 'Kiss the Son,' which saith 'Swear not at all.'"

Still the laying of the hand on the book seems to have been an essential form; for, during the trial, when the oath was offered to Margaret Fell, "the clerk held out the book, and bid her pull off her glove, and lay her hand on

the book" (*H. M.*, p. 285.). And directly after, when the oath had been read to Fox, the following scene is described:

"'Give him the book,' *said they*; and so a man that stood by him held up the book, and said, 'Lay your hand on the book.'

"*Geo. Fox*. 'Give me the book in my hand.' Which set them all agazing, and as in hope he would have sworn."

And it appears from the case of *Omychund v. Barker*, that, at that time, the usual form was by laying the right hand on the book, and kissing it afterwards (1 *Atk.* 42.). It seems not improbable that Paley's suggestion, in his *Moral Philosophy*, vol. i. p. 192. (10th edit.), may be correct. He says:

"The kiss seems rather an act of reverence to the contents of the book, as, in the Popish ritual, the priest kisses the gospel before he reads it, than any part of the oath."

The Query respecting the Welsh custom I must leave to those who are better informed respecting the judicial forms of that country; merely suggesting whether the practice alluded to by your correspondent may not originally have had a meaning similar to that of the three fingers on the book, and two under, as described by Fox in the passage above quoted.

ERICA.

Warwick.

In the bailiwick of Guernsey the person sworn lifts his right hand, and the presiding judge, who administers the oath, says "*Vous jurez par la foi et le serment que vous devez à Dieu que,*" &c. Oaths of office, however, are taken on the Gospels, and are read to the person swearing by the greffier, or clerk of the court. The reason of this difference may be accounted for by the fact that the official oaths, as they now exist, appear to have been drawn up about the beginning of the reign of James I., and that in all probability the form was enjoined by the superior authority of the Privy Council.

Which of the two forms was generally used before the Reformation, I have not been able to discover; but in an account of the laws, privileges, and customs of the island, taken by way of inquisition in the year 1331, but

more fully completed and approved in the year 1441, it appears that the juries of the several parishes were sworn "sur Saintes Evangiles de Dieu par eulx et par chacun d'eulx corporellement touché,"—"par leurs consciences sur le peril de la dampnation de leurs ames."

I remember to have seen men from some of the Baltic ports, when told to lift their right hands to be sworn, double down the ring finger and the little finger, as is done by bishops in the Roman Catholic Church when giving the benediction.

In France the person making oath lifts his right hand. The oath is administered by the presiding judge without any reference to the Deity, but the person who swears is required to answer "Je le jure." I observed that in Brittany, when the person sworn was ignorant of the French language, the answer was "Va Doué," which, I believe, means in the Breton dialect, "By God."

In the Ecclesiastical Court of Guernsey I have seen the book presented to the person swearing open at one of the Gospels; but in the Royal Court the book is put into the right hand of the party making oath, shut. In either case it is required that the book should be kissed.

HONORÉ DE MAREVILLE.

Guernsey.

COMMUNATORY INSCRIPTIONS IN BOOKS.

(Vol. viii., pp. 64. 153.)

Many inscriptions, comminatory or exhortatory, written in books and directed to readers, have been commemorated in "N. & Q." Towards the beginning of the present century, the most common epigram of the kind in the French public schools was the following elegant motto, with its accompanying illustration:

"*Aspice Pierrot pendu,*
Quota librum n'a pas rendu!"

Poor Pierrot is exhibited in a state of suspension, as hanging from the inverted letter L (Г), which symbolises the fatal tree. Commminatory and exhortatory cautions not to soil, spoil, or tear books and MSS. occur so frequently in the records of monastic libraries, that a whole album could easily be filled with them. The coquettish bishop, Venantius Fortunatus, has a distich on the subject. Another learned Goth, Theud-wulf, or Theodulfus, Charlemagne's *Missus dominicus*, recommends readers a proper ablution of their hands before turning the consecrated leaves:

"Utere me, lector, mentisque in sede locato;
Cumque librum petis hinc, sit tibi *lota* manus!"—*Saith Library*.

Less lenient are the imprecations commemorated by Don Martenne and Wanley. The one inscribed on the blank leaf of a Sacramentary of the ninth century is to the following effect:

"Si quis eum (librum) de monasterio aliquo ingenio non redditurus, abstraxerit, cum Juda proditore, Annâ et Caïphâ, portionem æternæ damnationis accipiat. Amen! Amen! Fiat! fiat!"—*Voyage Littéraire*, p. 67.

That is fierce and fiery, and in very earnest. A MS. of the Bodleian bears this other inscription, to the same import:

"Liber Sanctæ Mariæ de Ponte Roberti. Qui eum abstulerit aut vendiderit ... aut quamlibet ejus partem absciderit, sit anathema maranatha."

Canisius, in his *Antiquæ Lectiones* (l. ii. p. 3. 320.), transcribes another comminatory distich, copied from a MS. of the Saint Gall library:

"Auferat hunc librum *nullus hinc*, omne per ævum,
Cum Gallo partem quisquis habere cupit!"

Such recommendations are now no longer in use, and seem rather excessive. But whoever has witnessed the extreme carelessness, not to say improbity, of some of the readers admitted into the public continental libraries, who scruple not to soil, spoil, and even purloin the most precious

and rare volumes, feels easily reconciled to the *anathema maranatha* of the ninth and tenth centuries.

P.S.—Excuse my French-English.

PHILARÈTE CHASLES, Mazarinæus.

Paris, Palais de l'Institut.

LIVERIES WORN, AND MENIAL SERVICES PERFORMED, BY GENTLEMEN.

(Vol. vi., p. 146.)

However remarkable the conduct of the rustic esquire of Downham may appear in the present dully, when he accepted and wore the livery of his neighbour the Knight-Baronet of Houghton Tower, it was a Common practice for gentlemen of good birth and estate to accept and wear, and even to assume without solicitation, upon state occasions, the livery of an influential neighbour, friend, or relation, in testimony of respect and affection for the giver of the livery.

Thus it appears in the Diary of Nicholas Assheton that, in 1617, to the Court at Mirescough "Cooz Assheton came with his gentlemanlie servants as anie was there," and that the retinue of menial servants in attendance upon Sir Richard Houghton was graced by the presence of more than one country gentleman of good family. Baines, in his *History of Lancashire*, vol. ii. p. 366., also relates concerning Humphrey Chetham, that—

"In 1635 he was nominated to serve the office of sheriff of the county, and discharged the duties thereof with great honour, several gentlemen of birth and estate attending and wearing his livery at the assizes, to testify their respect and affection for him."

Evelyn, in his *Diary*, gives a similar account of the conduct of "divers gentlemen and persons of quality" in the counties of Surrey and Sussex:

"1634. My father was appointed sheriff for Surrey and Sussex before they were disjoined. He had 116 servants in liverys, every one livery'd in greene sattin doublets. Divers gentlemen and persons of quality waited on him in the same garbe and habit, which at that time (when thirty or forty was the the usual retinue of the high sheriff) was esteemed a great matter. Nor was this out of the least vanity that my father exceeded (who was one of the greatest decliners of it); but because he could not refuse the civility of his friends and relations, who voluntarily came themselves, or sent in their servants."

The practice of assuming the livery of a relation or friend, and of permitting servants also to wear it, appears to have existed in England in the time of Richard II., and to have had the personal example of this sovereign to support it. He seems, however, to have thereby excited the disapprobation of many of his spiritual and temporal peers. I produce the following passage with some hesitation, because it is by no means certain that any one of the liveries thus assumed by Richard was a livery of cloth:

"17th Richard II. A.D. 1393-4.

"Richard Count d'Arundell puis le commencement de cest present Parlement disoit au Roy, en presence des Archevesques de Cantorbirs et d'Everwyk, le Duc de Gloucestr', les Evesques de Wyncestre et Saresbirs, le Count de Warrewyk et autres....

"Item q̄ le Roy deust porter la Livere de coler le Duc de Guyene et de Lancastr'.

"Item q̄ gentz de retenue de Roi portent mesme la Livere....

"A q̄i n̄re Sr̄ le Roi alors respondi au dit Count ... q̄ bientot apres la venue son dit uncle de Guyene quant il vient d'Espaign darrein en Engleterre q̄ mesme n̄re Sr̄ le Roi prist le Coler du cool mesme son uncle et mist a son cool demesne et dist q'il vorroit porter et user en signe de bon amour d'entier coer entre eux auxi come il fait les Liveres ses autres uncles.

"Item (quant au tierce) nre Sr le Roi disoit q ceo fuist de counge de luy et de sa volunte q gentz de sa retenue portent et usent mesme la Livere de Coler."—*Rolls of Parliament*, vol. iii. p. 313.

"Richard Earl of Arundel, after the commencement of this present parliament, said to the King in the presence of the archbishops of Canterbury and of York, the Duke of Gloucester, the Bishops of Winchester and Salisbury, the Earl of Warwick, and others....

"Item. That the King uses to wear the livery of the collar of the Duke of Guienne and of Lancaster.

"Item. That persons of the retinue of the King wear the same livery.

"To which our lord the King then answered to the said earl....

"That soon after the coming of his said uncle of Guienne, when he came from Spain last into England, that himself our lord the King took the collar from the neck of the same his uncle and put it on his own neck, and said that he vowed to wear and to use it in sign of good love of whole heart between them also, as he did the liveries of his other uncles.

"Item (as to the third). Our lord the King said that it was by leave from him, and by his wish, that persons of his retinue wear and use the same livery of the collar."

This practice of one of our early sovereigns seems to afford a precedent for the mode in which divers gentlemen and persons of quality voluntarily showed civility towards Richard Evelyn, and for that in which several gentlemen of birth and estate testified their respect and affection for Humphrey Chetham. Nicholas Assheton also appears to have the support of this royal precedent in so far as relates to his accepting and wearing the livery of a friend and neighbour; and the custom of his day evidently lends its sanction to his forming, upon a state occasion, one of the body of menial servants in attendance upon Sir Richard Houghton, when he went to meet the king.

Another passage in the *Rolls of Parliament* seems to afford a respectable civic precedent for the services performed by Nicholas Assheton and other liveried gentlemen, when they waited at the lords' table at Houghton Tower:

"11th Edward III. A.D. 1337.

"A nre Seigneur le Roy et a son conseil monstre Richard de Bettoyne de Loundres, qe come au Coronement nre Seigneur le Roy q ore est il adonge Meire de Loundres fesoit l'office de Botiller ove CCC e LX vadletz vestutz d'une sute chescun portant en sa mayn un coupe blanche d'argent come autres Meirs de Loundres ountz faitz as Coronementz des pgenitours nostre Seigneur le Roy dont memoire ne court pars et le fee q appendoit a cel jorne c'est asavoir un coupe d'or ove la covercle et un ewer d'or enamaille lui fust livre p assent du Counte de Lancastre et d'autres Grantz qu'adonges y furent du Conseil nostre Seigneur le Roy p la mayn Sire Robt de Wodehouse et ore vient en estreite as Viscountes de Londres hors del Chekker de faire lever des Biens et Chateux du dit Richard xx/iiii ixli. xiis. vid. pur le fee avant dit dont il prie qe remedie lui soit ordeyne.

"Et le Meire et Citoyens d'Oxenford ount p point de chartre q'ils vendront a Londres l'Encorronement d'eyder le Meire de Loundres pur servir a la fest et toutz jours l'ount usee. Et si i plect a nre Seigneur le Roy et a son Conseil nous payerons volonters la fee issent qe nous soyons descharges de la service."—*Rolls of Parliament*, vol. ii. p. 96.

"To our lord the King and to his Council sheweth Richard de Bettoyne of London, that whereas at the coronation of our lord the King that now is, he their mayor of London performed the office of butler with three hundred and sixty valets clothed of one suit each, bearing in his hand a white cup of silver, as other mayors of London have done at the coronations of the progenitors of our lord the King, whereof memory runneth not, and the fee which appertained to this day's work, that is to wit, a cup of gold with the cover, and a ewer of gold enamelled, were delivered to him by assent of the Earl of Lancaster, and of the other grandees who then there were of the council of our lord the King, by the hand of Sire Robert de Wodehouse, and now comes in estreat to the

viscounts of London out of the Checquer, to cause to take the goods and chattels of the said Richard, eighty-nine pounds twelve shillings and sixpence, for the fee aforesaid, whereof he prays that remedy be ordained to him.

"And the mayor and citizens of Oxford have, by point of charter, that they shall come to London to the coronation, to help the mayor of London to serve at the feast, and always have so done. And if it please our lord the King and his Council, we will pay willingly the fee, provided that we be discharged of the service."

There can be little doubt that the citizens of Oxford bore their own travelling expenses; and it seems probable that the citizens of London and Oxford bore the cost of the three hundred and sixty suits of clothes and three hundred and sixty silver cups; but this is scarcely sufficient to account for their willingness to pay a sum of money equivalent to about fifteen hundred pounds in the present day, in order to be relieved from the honourable service of waiting clothed in uniform, each with a silver cup in his hand, helping the Mayor of London to perform the office of butler at coronation feasts. However this may be, it is still somewhat remarkable that, in the seventeenth century, Nicholas Assheton of Downham, Esq., and other gentlemen of Lancashire, upon a less important occasion than a coronation feast, dressed in the livery of Sir Richard Houghton and voluntarily attended, day after day, at the lords' table at Houghton Tower, and served the lords with biscuit, wine, and Jelly.

J. LEWELYN CURTIS.

FEMALE PARISH CLERKS.

(Vol. viii., p. 338.)

The cases of *Rex v. Stubbs* and *Olive v. Ingram*, mentioned in the following extracts from Prideaux's *Guide to Churchwardens*, p. 4., may be of service:

"Generally speaking, all persons *inhabitants* of the parish are liable to serve the office of churchwarden, and from the cases of *Rex v. Stubbs*

(2 T. R. 395.; 1 Bott. 10.), in which it was held that a woman is not exempt from serving the office of overseer of the poor, and *Olive v. Ingram* (2 Str. 1114.), in which it was held that she may be a parish sexton, there may, perhaps, be some ground for contending a woman is not exempt from this duty."

RUSSELL GOLE.

A few years ago (she may still be so) there was a gentlewoman the parish clerk of some church in London; perhaps some of your readers may be able to say where: a deputy officiated, excepting occasionally. But many such instances have occurred.

In a note in Prideaux's *Directions to Churchwardens* (late edition), the following references are given as to the power of women to fill parochial and other such offices: *Rex v. Stubbs*, 2 T. R. 359.; *Olive v. Ingram*, 2 Strange, 1114.

H. T. ELLACOMBE.

Rectory, Clyst St. George.

I beg to inform Y. S. M. that when I went to reside near Lincoln in 1828, a woman was clerk to the parish of Sudbrooke, and died in that capacity a very few years after. I do not remember her name at this moment, but I could get all particulars if required on my return to Sudbrooke Holme.

RICH. ELLISON.

Balmoral Hotel, Broadstairs, Kent.

I am able to mention another instance of a woman acting as parish clerk at Ickburgh, in the county of Norfolk. It is the parish to Buckenham Hall, the seat of the Honourable Francis Baring, near Thetford. A woman there has long officiated as parish clerk, and still continues acting in that capacity.

F. R.

I beg to refer Y. S. M. to the following passage Madame d'Arblay's *Diary*, vol. v. p. 246.:

"There was at Collumpton only a poor wretched ragged woman, a female clerk, to show us this church: she pays a man for doing the

duty, while she receives the salary in right of her deceased husband!"

M. L. G.

At Misterton, near Crewkerne, in Somersetshire, Mary Mounford was clerk for more than thirty years. She gave up the office about the year 1832, and is now in Beaminster Union, just eighty-nine years old.

HERBERT L. ALLEN.

POETICAL EPITHETS OF THE NIGHTINGALE.

(Vol. vii., p. 397.; Vol. viii., p. 112.)

To the one hundred and ten epithets poetically applied to the nightingale and its song, collected by MR. BEDE, permit me to add sixty-five more.

Azure-crested. Cowper.

Bewailing. Drummond.

Chaunting. Skelton.

Chaste poet. Grainger.

Dappled. Anon.^[2]

Darling. Carey.

Daulian minstrel. Herrick.

Delightful. Shelley.

Dusky-brown. Trench.

Early. C. Smith.

Elegiac. Dibdin.

Enamoured. Shelley.

Fabled. Byron.

Fair. Smart.

Greeful.^[3] Lodge.

Gurgling. Lloyd.

Hallow'd. Moore.

Hundred-throated. Tennyson.

Invisible. Hurdis.

Lesbian. Bromley.

Love-learned. Thomson.

Love-sick. Warton.
Loud-complaining. Gibbons.
Lulling. Anon.[\[4\]](#)
Lute-tongued. Anon.[\[5\]](#)
Mellow. Strangford.
Midnight minstrel. Logan.
Moody. Hurdis.
Nightly. Bidlake.
Pandionian. Drummond.
Panged. Hood.
Pitiful. Herrick.
Plaintful. Drummond.
Quavering. Poole.
Querulous. Kennedy.
Rapturous. Southey.
Rural. Dryden.
Sable.[\[6\]](#) Drummond.
Sadly-pleasing.[\[7\]](#) Anon.
Secret. Shelley.
Sely. Chaucer.
Sequestered. J. Montgomery.
Shy. Dallas.
Silver-tuned. Carey.
Simple. Derrick.
Sobbing. Planché.
Soft-tuned. Whaley.
Solitary. Bowring.
Sorrow-soothing. Shaw.
Sprightly. Elton.
Sweet-breasted. Beaumont and Fletcher.
Sweet-tongued. Anon.[\[8\]](#)
Sylvan syren. Pattison.
Tearful. Potter.
Tenderest. Wiffen.
Thracian. Lewis.
Transporting. Hurdis.

Unadorned. Hurdis.
Unhappy. Croxall.
Watchful. Philips.
Witching. Proctor.
Woodland. Smith.
Wretched. Shirley.
Wronged. P. Fletcher.
Yearly. Drayton.
Young. Lewis.

The character of the mere song alone has been described in the following terms:

Melodious lay. Potter.
Lofty song. Yalden.
A storm of sound. Shelley.
Impressive lay. Merry.
Swelling slow. Kirk White.
Tremulously slow. C. Smith.
Wild melody. Shelley.
Thick melodious note. Lloyd.
Hymn of lore. Logan.
Melting lay. Henley.
Harmonious woe. Pomfret.
Well-tuned warble. Shakspeare.
Luscious lays. Warton.
Sadly sweet. Potter.
Varied strains. Pope.
Thick-warbled notes. Milton.

W. PINKERTON.

Ham.

Footnote 2:[\(return\)](#)

Blackwood's Mag., Jan. 1838.

Footnote 3:[\(return\)](#)

"I regard the prettie, greeful bard

With tearfull, yet delightfull, notes complaine."—*Heliconia*.

Footnote 4:[\(return\)](#)

Lays of the Minnesingers.

Footnote 5:[\(return\)](#)

Weekly Visitor, July, 1835.

Footnote 6:[\(return\)](#)

"Night's sable birds, which plain when others sleep."—*Thaumantia*.

Footnote 7:[\(return\)](#)

Evening Elegy.—*Poetical Calendar*.

Footnote 8:[\(return\)](#)

Harleian Miscellany, vol. viii.

PHOTOGRAPHIC CORRESPONDENCE.

Photographic Exhibition.—We understand that the Photographic Society has made arrangements for an exhibition of photographs in the metropolis during the months of January and February next. The exhibition will not be confined to the works of native photographers, but will comprise specimens of the most eminent foreign artists, who have been specially invited to contribute. From the advances which have been made in this favourite art, even since the recent exhibition in the rooms of the Society of Arts, we may confidently anticipate that the display on the present occasion will be one of the highest interest.

How much Light is obstructed by a Lens?—Can any of your scientific correspondents furnish me with an approximation to the quantity of light which is transmitted through an ordinary double achromatic lens, say of Ross, Voightlander, or any other celebrated maker?

LUX.

Stereoscopic Articles.—I cannot agree to my opponent's assumed amendment (?) (Vol. viii., p. 419.) *space*, for the simple reason that it would be virtually abandoning the whole of the points in dispute between us; when

farther discussion and more mature consideration, only tend to convince me more firmly of the correctness of the propositions I have advocated, viz.:

1st. That circumstances *may* and *do* arise in which a better result is obtained in producing stereographs, when the chord of the angle of generation is more or less than $2\frac{1}{2}$ inches.

2nd. That the positions of the camera should *not* be parallel but radial.

I certainly thought that I had, as I intended, expressed the fact that I treat the cameras *precisely as two eyes*, and moreover I still contend that they should be so treated; my object being to present to each eye *exactly such a picture and in such a direction as would be presented under certain circumstances*. The plane of delineation being a flat, instead of a curved surface, has nothing whatever to do with this point, because the curves of the retinas are not portions of one curve having a common centre, but each having its own centre in the axis of the pupil. That a plane surface for receiving the image is not so good as a spherical one would be, is not disputed; but this observation applies to photographs *universally*, and is only put up with as the lesser of two evils. A plane surface necessarily contracts the field of view to such a space as could be cut out of the periphery of a hollow sphere, the versed sine of which bears but a small ratio to its chord.

There is another misunderstanding into which my opponent has fallen, viz. the part of the object to be delineated, which should form the centre of radiation, is not the most contiguous visible point, but the most remote principal point of observation. I perceive that this is the case from two illustrations he was kind enough to forward me, being stereographs of a **T** square, placed with the points of junction towards the observer, and the tail receding from him; and in one case the angle of the square is made the centre of radiation, and while its distance from the camera is only six feet, the points of delineation are no less than three feet apart.

To push an argument to the extreme to test its value, is quite right; but this goes far beyond the extreme, if I may be allowed such a very Hibernian expression.

No object, however minute, can be clearly seen if brought nearer to the eyes than a certain point, because it will be what is technically called out of focus. It is true that this point differs in different individuals, but the *average distance* of healthy vision is 10 inches. Now, adopting MR. MERRITT'S own standard of 2½ inches between the eyes, it is clear that supposing the central point had been rightly selected, the distance between the cameras was *only double* what might have been taken an extreme distance. It is scarcely necessary to suggest what a person devoid of taste (in which category I am no doubt included) might do in producing monstrosities by adopting the radial method, as such an one is not very likely to produce good results at all.

I now address myself to another accusation. It is quite true that I am unacquainted with the *scholastic dogmas* of perspective, but equally true that I am familiar with *the facts* thereof, as any one must be who has studied optical and geometrical science generally; and while I concur in the propositions as enunciated for a one-eyed picture, I by no means agree to the assumption that the "vanishing points," in the two stereographs taken radially with the necessary precautions, "would be so far apart, that they could not in the stereoscope flow into one;" on the contrary, direct experiment shows me, what reason also suggests, that they do flow into one as *completely as in nature when viewed by both eyes*.

I put the proposition thus, because I do not hesitate to avow that in nature, as interpreted by binocular vision, these points do not *absolutely*, but only approximately, flow *into one*; otherwise one eye would be as effective as two.

I have not the smallest objection to my views being considered "false to art," as, alas! her fidelity to nature is by no means beyond suspicion.

Lastly, as to the model-like appearance of stereographs taken at a large angle, for the fact I need only refer the objector to most of the beautiful foreign views now so abundant in our opticians' shops: for the reason, is it not palpable that increasing the width of the eyes is analogous to decreasing the size of the object? and if naturally we cannot "perceive at one view three sides of a cake, two heads of a drum, nor any other like absurdity," it is only because we do not use objects sufficiently *small* to permit us to do

so. Even while I am writing this, I have before me a small rectangular inkholder about 1¼ inches square, and distant from my eyes about one foot, in which the very absurd phenomenon complained of does exist, the front, top, and *both* sides being perfectly visible at once: and being one of those obstinate fellows who will persist in judging personally from experience if possible, I fear I shall be found incorrigible on the points on which your correspondent has so kindly endeavoured to enlighten me.

GEO. SHADBOLT.

To introduce Clouds (Vol. viii., p. 451.) as desired by your correspondent Σ., the negative must be treated in the sky by solution of cyanide of potassium laid on in the form desired with a camel's hair pencil. This discharges a portion of the reduced silver, and allows the light to penetrate; but great care is required to stop the action by well washing in water before the process has gone too far. White clouds are produced by painting them in with a black pigment mixed in size.

GEO. SHADBOLT.

Replies to Minor Queries.

Death of Edward II. (Vol. viii., p. 387.).—P. C. S. S. has noticed with considerable surprise the very strange assertion of MR. C. M. INGLEBY with reference to the murder of Edward II. at Berkeley Castle, viz. that "Echard and Rapin are silent, both as to the event and the locality." If MR. INGLEBY will again refer to Echard (vol. i. p. 341., edit. 1718) and to Rapin (vol. iii. p. 147., edit. 1749), he will perceive that the two historians record "both the event and the locality."

MR. INGLEBY did not perhaps consider that the transaction in question took place during the reign of Edward III.; and is, therefore, not to be sought for at the close of that of Edward II. (where probably MR. C. M. INGLEBY looked for it), but among the occurrences in the time of Edward III. MR. C. M. INGLEBY will assuredly find it there, not only in Echard and Rapin, but in every other History of England since the date of the "event."

P. C. S. S.

Luther no Iconoclast (Vol. viii., p. 335.).—An occasional contributor wishes the Editor to note down this Query. What could have led your correspondent J. G. FITCH to use so peculiarly inappropriate a synonym for Martin Luther as "the great Iconoclast?" Has he any historical evidence for Luther's breaking a single image?

It is not to defend Luther, but to point out a defect in his teaching, as it is regarded by the adherents of other Protestant churches, that Dr. Maclaine has said, in his note on Book IV. ch. i. § 18. of Mosheim:

"It is evident, from several passages in the writings of Luther, that he was by no means averse to the use of images, but that, on the contrary, he looked upon them as adapted to excite and animate the devotion of the people."

Mosheim, and Merle D'Aubigné, and probably any other historian of the Reformation in Germany, may be cited as witnesses for the notorious fact, that Carlstadt excited the citizens of Wittemberg to break the images in their churches when Luther was concealed in the Castle of Wartburg, and that he rebuked and checked these proceedings on his return. See Mosheim, as cited before, or D'Aubigné, book IX. ch. vii. and viii.

H. W.

Rev. Urban Vigors (Vol. viii., p. 340.).—My great-great-grandmother was a sister of Bishop Vigors, who was consecrated to the see of Leighlin and Ferns, March 8, 1690. He, I know, was a near relative of the Rev. Urban Vigors. An Urban Vigors of Ballycormack, co. Wexford, also married my great-great-aunt, a Miss Thomas, sister of Vigors Thomas, Esq., of Limerick. I should, equally with your correspondent Y. S. M., wish to know any particulars of the "Vigors" family; and should be delighted to enter into correspondence with him.

W. SLOANE SLOANE-EVANS.

Cornworthy Vicarage, Totnes.

Portrait of Barette (Vol. VIII., p. 411.).—In reply to MR. G. R. CORNER'S Query regarding Sir Joshua Reynolds' picture of Barette, I can give him the information he requires.

This very interesting portrait is now at my brother's, Holland House, Kensington.

My late father, Lord Holland, had a pretty picture of the late Lord Hertford's mother (I believe), or some near relation of his. Not being connected with that family, my father offered it to Lord Hertford, leaving it to his lordship to give him such picture as he might choose in exchange. Some time afterwards this portrait of Baretta was sent, and was much prized and admired. It represents Baretta reading a small book, which he holds close to his face with both hands; he is in a white coat, and the whole carries with it a certainty of resemblance. This occurred about twenty-five years ago. Perhaps it may interest your readers to learn that our distinguished painter, Watts, painted for my brother, Lord Holland, a portrait of another distinguished Italian, Mr. Panizzi, and pendant to the former. He is represented leaning forward and writing, and the likeness is very striking.

C. Fox.

Addison Road.

Passage in Sophocles.—In Vol. viii., p. 73., appears an article by MR. BUCKTON, in which he quotes the following conclusion of a passage in Sophocles:

Ὅτω φρένας
Θεὸς ἄγει πρὸς ἄταν·
Πράσσειν δ' ὀλιγοσπὸν χρόνον ἐκτὸς ἄτας."

This, πέτρῳ στάθμην ἀρμόζων, he translates,—

"Whose mind the God leads to destruction; *but that he (the God)* practises this a short time without destroying such an one."

But for the Italics it might have been an oversight: they would seem to imply he has some authority for his translation. I have no edition of Sophocles by me to discover, but surely no critical scholar can acquiesce in it. The only *active* sense of πράσσειν I remember at the moment is *to exact*. It surely should be translated, "*And he, whom the God so leads to ἄτη, fares a very short time without it.*" The best translation of ἄτη is,

perhaps, *infatuation*. Moreover, how is the above translation reconciled with the very superlative ὀλίγοστον?

M.

Brothers of the same Name (Vol. viii., p. 338.).—It is not unusual in old pedigrees to find two brothers or two sisters with the same Christian name; but it is unusual to find more than two living at the same time with only one Christian name between them: this, however, occurs in the family of Gawdy of Gawdy Hall, Norfolk. Thos. Gawdy married three wives, and by each had a son Thomas. The eldest was a serjeant-at-law, and died in 1556. The second was a judge of the Queen's Bench, and died in November, 1587 or 1588. The third is known as Sir Francis Gawdy, Chief Justice of the Common Pleas; but he also was baptized by the name of Thomas. Lord Coke, who succeeded him as Chief Justice, says (Co. Lit. 3. a.):

"If a man be baptized by the name of Thomas, and after at his confirmation by the bishop he is named John, he may purchase by his name of confirmation; and this was the case of Sir Francis Gawdie, late C. J. of C. B., whose name of baptism was Thomas, and his name of confirmation Francis; and that name of Francis, by the advice of all the judges in anno 36 Henry VIII. (1544-5), he did bear and after used in all his purchases and grants."

The opportunity afforded by the Roman Catholic Church of thus changing the baptismal name may help to account for this practice, which probably arose from a desire to continue the particular name in the family. If one of two sons with the same name of baptism died in childhood, the other continued the name: if both lived, one of them might change his name at confirmation. There is no name given at confirmation according to the form of the Church of England.

F. B.

High Dutch and Low Dutch (Vol. viii., p. 413.).—Considerable misapprehension appears to have arisen with regard to these expressions, from the fact of the German word *Deutsch* being sometimes erroneously understood to mean Dutch. But German scholars very well know that in Germany nothing is more common than to speak of *Hoch Deutsch* and *Nieder Deutsch* (High German and Low German), as applied respectively to

that language when grammatically spoken and correctly pronounced, and to the bad grammar and worse pronunciation indulged in by many of the provincials, and also by the lower class of people in some of the towns where High German is supposed to prevail. Thus, for examples Dresden is regarded as the head-quarters of *Hoch Deutsch*, because there the language is spoken and pronounced with the most purity: Berlin, also, as regards the well-educated classes, boasts of the *Hoch Deutsch*; but the common people (*das Volk*) of the Prussian capital indulge in a dialect called *Nieder Deutsch*, and speak and pronounce the language as though they were natives of some remote province. Now, the instance of Berlin I take to be a striking illustration of the meaning of these expressions, as both examples are comprised in the case of this city.

The German word for "German" is *Deutsch*; for "Dutch" the German is *Holländisch*; and I presume it is from the similarity of *Deutsch* and *Dutch* that this common error is so frequently committed. For the future let it be remembered, that *Dutch* is a term which has no relation whatever to German; and that "High German" is that language spoken and written in its purity, "Low German" all the dialects and mispronunciations which do not come up to the standard of correctness.

JAMES SPENCE HARRY.

8. Arthur Street.

Translations of the Prayer Book into French (Vol. vii., p. 382.; Vol. viii., p. 343.).—Besides the editions already mentioned, a 4to. one was published at London in 1689, printed by R. Everingham, and sold by R. Bentley and M. Magnes. Prefixed to it is the placet of the king, dated 6th October, 1662, with the subsequent approbation of Stradling, chaplain to Gilbert (Sheldon), Bishop of London, dated 6th April, 1663.

It seems ("N. & Q.," Vol. vii., p. 92.) that a copy is in the British Museum; one is also in my possession.

I presume that there were other editions between the years 1663 and 1689.

H. P.

Divining-rod (Vol. viii., p. 293.).—For a full account of the divining rod see *La Physique occulte, ou Traité de la Baguette Divinatoire, &c.*, par Père L. de Vallemont, a work by no means uncommon, having passed through several editions. Mine is "à Paris, chez Jean Boudot, avec priv. 1709, in 12°. avec figures," with the addition of a "Traité de la Connoissance des Causes Magnétiques, &c., par un Curieux."

A Cornish lady informs me that the Cornish miners to this day use the divining-rod in the way represented in fig. 1. of the above-mentioned work.

R. J. R.

In the 351st number of the *Monthly Magazine*, dated March 1st, 1821, there is a letter to the editor from W. Partridge, dated Boxbridge, Gloucester, giving several instances of his having successfully used the divining-rod for the purpose of discovering water. He says the gift is not possessed by more than one in two thousand, and attributes the power to electricity. Those persons in whose hands it will work must possess a redundancy of that fluid. He also states that metals are discovered by the same means.

K. B.

Slow-worm Superstition (Vol. vii., p. 33.).—The belief that the slow-worm cannot die until sunset prevails in Dorsetshire. In the New Forest the same superstition exists with regard to the brown adder. Walking in the heathy country between Beaulieu and Christ Church I saw a very large snake of this kind, recently beaten to death by the peasant boys, and on remarking that the lower jaw continued to move convulsively, I was told it would do so "till the moon was up."

An aged woman, now deceased, who had when young been severely bitten by a snake, told me she always felt a severe pain and swelling near where the wound had been, on the anniversary of the occurrence. Is this common? and can it be accounted for?

W. E.

Pimperne, Dorset.

Ravalliac (Vol. viii., p. 219.).—The destruction of the pyramid erected at Paris upon the murder of Henry IV., is mentioned by Thuanus, *Hist.*, lib.

134. cap. 9. In your correspondent's Query, *Thesaur.* is, I presume, misprinted for Thuan.

B. J.

Lines on the Institution of the Garter (Vol. viii., p. 182.).—A. B. R. says, "as also from the proverbial expression used in Scotland, and to be found in Scott's *Works*, of 'casting a leggin girth,' as synonymous with a female 'faux pas.'" I may mention to your correspondent (if he is not already aware) that the expression is taken from Allan Ramsay's continuation of *Christ's Kirk on the Green* (edit. Leith, 1814, 1 vol. p. 101.):

"Or bairns can read, they first maun spell,
I learn'd this frae my mammy;
And coost a *legen girth* mysell,
Lang or I married Tammie."

and is explained by the author in a note, "Like a tub that loses one of its bottom hoops." In the west of Scotland the phrase is now restricted to a young woman who has had an illegitimate child, or what is more commonly termed "a misfortune," and it is probable never had another meaning. *Legen* or *leggen* is not understood to have any affinity in its etymology to the word *leg*, but is *laggen*, that part of the staves which projects from the bottom of the barrel, or of the child's *luggie*, out of which he sups his oatmeal *parritch*; and the *girth*, *gird*, or hoop, that by which the vessel at this particular place is firmest bound together. Burns makes a fine and emphatic use of the word *laggen* in the "Birthday Address," in speaking of the "Royal lasses dainty" (*Cunninghame*, edit. 1826, vol. ii. p. 329.):

"God bless you a', consider now,
Ye're unco muckle dantet:
But ere the course o' life be thro'
It may be bitter santet.
An I hae seen their coggie fou,
That yet hae tarro' t at it;
But or the day was done, I trow,
The *laggen* they hae clautet."

which means, that at last, whether through pride, hunger, or long fasting, the appetite had become so keen, that all, even to the last particle of the *parritch*, was *clautet*, *scartit*, or scraped from the bottom of the *coggie*, and to its inmost recesses surrounded by the *laggen girth*. Of the motto of the garter, "Honi soit qui mal y pense," I have heard a burlesque translation known but to few, in "*Honeys sweet quo' Mally Spence*," synonymous with Proverbs, chap. ix. verse 17: "Stolen waters are sweet, and bread *eaten* in secret is pleasant."

G. N.

Passage in Bacon (Vol. viii., p. 303.).—I had, partly from inadvertence, and partly from a belief that a tautology would be created by a recurrence to the idea of death, after the words "mortis terrore carentem," in the preceding line, understood the verse in question to mean, "which regards length of life as the last of Nature's gifts." On reconsideration, however, I do not doubt that the received interpretation, which makes *spatium extremum* equivalent to *finem*, is the correct one.

L.

What Day is it at our Antipodes? (Vol. viii., p. 102.).—A person sailing to our Antipodes westward will lose twelve hours; by sailing thither eastward he will gain twelve hours. If both meet at the same hour, say eleven o'clock, the one will reckon 11 A.M., the other 11 P.M.

ESTE.

Calves' Head Club (Vol. viii., p. 315.).—In Hone's *Every Day Book*, vol. ii. pp. 158, 159, 160., some more information is given on the interesting event referred to in the Note made by MR. E. G. BALLARD. A print is given of the scene; and the obnoxious toasts are also quoted; they are: "The pious memory of Oliver Cromwell;" "Damn—n to the race of the Stuarts;" "The glorious year 1648;" "The man in the mask," &c. The print is dated 1734, which proves that the meeting at which the disturbance arose was not the first which had taken place.

S. A. S.

Bridgewater.

Heraldic Query (Vol. viii., p. 219.).—Although A. was killed in open rebellion, I think his armorial bearings were not forfeited unless he was subsequently attainted by act of parliament; and even in that case it is possible that the act contained a provision that the penalty should not extend to the prejudice of any other person than the offender. Assuming that A. was not attainted, or that the consequences of his attainder were thus restricted to himself, or that his attainder has been reversed, it is clear that his lawful posterity are still entitled to his arms, notwithstanding the acceptance by his grandson C. of a new grant, which obviously could no more affect the title to the ancient arms than the creation of a modern barony can destroy the right of its recipient to an older one. The descendants of C. being thus entitled to both coats, could, I imagine, without difficulty obtain a recognition of their right; and I think they might either use the ancient arms alone, or the ancient and the modern arms quarterly, precedence being given to the former. The proper course would be to seek the licence of the crown for the resumption of the ancient surname, as well as of the arms. Such permission would, I apprehend, be now conceded, even though it should appear that the arms were really forfeited.

HENRY GOUGH.

Emberton, Bucks.

The Temple Lands in Scotland (Vol. viii., p. 317.).—These lands, or a portion of them, were acquired, and afterwards transferred by sale, to Mr. Gracie, by James Maidment, Esq., the eminent Scottish antiquary, who, in 1828-29, privately printed—

"Templaria: Papers Relative to the History, Privileges, and Possessions of the Scottish Knights Templars, and their Successors, the Knights of St. John of Jerusalem, with Notes," &c.

This will no doubt contain all that your correspondent ABREDONENSIS could desire upon the subject, provided he can obtain it; for the work, professing to be printed by the author for presents, is confined to twenty-five copies, and must therefore be rare. In 1831 was published by Stevenson, Edinburgh, an *Historical Account of Linlithgowshire*, by the late John Penney.^[9] This is edited by Mr. Maidment, and contains a chapter entitled

an "Account of the Transmission of the United Estates of the Templars and Hospitallers, after the dissolution of the Order in the reign of Queen Mary;" and although the object of the editor is to notice the charters connected with Linlithgowshire, the book contains a sketch of the general history of the lands in question, abridged from the *Templaria*.

J. O.

Footnote 9:[\(return\)](#)

Query the late George Chalmers.

Sir John Vanbrugh (Vol. viii., p. 65. &c.).—In *An Account of the Life and Death of Mr. Matthew Henry*, published in the year 1716, his biographer having related that he was chosen a minister of a congregation of Dissenters in the city of Chester, and that he went there to reside on the first day of June, 1687, goes on to state (p. 75.):

"That city was then very happy in several worthy gentlemen that had habitations there; they were not altogether strangers to Mr. Henry before he came to live among them, but now they came to be his very intimate acquaintance; some of these, as Alderman Mainwaring and Mr. Vanbrugh, father to Sir John Vanbrugh, were in communion with the Church of England, but they heard Mr. Henry on the week-day lectures, and always treated him with great and serious respect."

This evidence serves to show that a Mr. Vanbrugh, who was living in Chester in 1687, was the father of Sir John Vanbrugh. I have been told that in former times there was a sugar-bakery at Chester. Did the father of Sir John Vanbrugh carry on that business at Chester during any period of his residence there?

N. W. S.

Sir Arthur Aston (Vol. viii., p. 126.).—In reference to the Query of your correspondent CHARTHAM, I take leave to refer him to Playfair's *Baronetage*, vol. ii. p. 257., where a pedigree of that ancient family is inserted. In p. 261. is a note, by which it appears that the said Sir Arthur Aston had a daughter Elizabeth, born in Russia, and married to James Thompson of Joyce Grove in Berkshire.

In addition thereto, I recollect seeing the copy of a deed of sale, dated April, 1637, by which it appears that Nicholas Hercy, of Nettlebed, in co. Oxon., sold to James Thompson of Wallingford, in co. Berkshire, "Joys Grove," in Nettlebed aforesaid; and there is united with the same James Thompson, apparently as a trustee, "George Tattersall the younger, of Finchampstead in said co. of Berkshire."

I also take leave to refer your correspondent to Lysons's *Environs of London*, vol. ii. p. 393., under head of "Fulham," where it is stated that Sir Arthur Aston's father resided in that parish.

AN ANTIQUARY.

Nugget (Vol. viii., p. 357.).—Colonel Mundy, in *Our Antipodes*, says that the word *nugget* was, before the days of gold digging, used by the farmers of Australia to express a small thick bullock, such as our English farmers would call a lumpy one, or a little great one.

A. H. WHITE.

Miscellaneous.

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ST. JOHN'S, *who asks about the Stafford Knot, will see by our last Number, p. 454., that it is the badge or cognizance of the Earls of Stafford.*

MR. VAN LAUN'S *Query as to the derivation of Huguenot is anticipated in our 6th Vol., p. 317. Will the Note there given help him to a satisfactory solution?*

THE TESTAMENT OF THE TWELVE PATRIARCHS, 1686.—*The loan of this volume is offered by T. D. to the Correspondent who advertised for it some time since in our columns.*

AMICUS VERITATIS, *who inquires respecting Cleanliness is next to Godliness, is referred to our 4th Vol., p. 491., for its probable origin.*

E. G. BALLARD. *The curious tenure of being the King's Vautrarius, kindly forwarded by this Correspondent, is already printed in Blount's Fragmenta Antiquitates, p. 142., ed. 1784.*

C. E. F. *We would strongly recommend our Correspondent to adopt the paper process described by DR. DIAMOND in our first Number for the present year (with correction of using the gallic acid, which, as stated in a subsequent Number, was by accident omitted). Recent experience has more than ever convinced us that if the method there laid down be strictly followed, the photographer will not meet with failures.*

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